14 August 2026 (CONSTITUTION)

Detailed Lecture Notes: Constitutional Law – Backward Classes and Reservation

Instructor: Professor V.P. Tiwari
Subject: Constitutional Law
Core Topic: Interpretation of "Backward Class of Citizens" (Article 15(4) & Article 16(4)) and Judicial Review of Reservation Policies.

Part 1: Foundational Concepts and Historical Context

1.1 Origin and Purpose of Reservation

- **Initial Constitutional Mandate:** At the time of the Constitution's framing, reservation was primarily provided in **Article 16** (public employment).
  - **Rationale:** The goal was to integrate individuals who had been historically deprived of participating in governance into the administrative apparatus. The intent was to ensure they "feel that they are part of the governance."
- **Educational Reservation:** Reservation in education (Article 15(4)) was introduced later, following the landmark case of ***State of Madras v. Champakam Dorairajan***.
- **Textual Difference:**
  - **Article 16(4):** Uses the term **"backward class of citizens."**
  - **Article 15(4):** Uses the term **"socially and educationally backward class of citizens."**

1.2 The Core Thesis: The Primacy of Social Backwardness

- **The Supreme Court's Stance:** The judgment asserts that all forms of backwardness in India are rooted in **social backwardness**.
- **The Causal Chain:** The Court posits a direct, causal relationship:
  1. **Social backwardness** (due to the caste system) leads to a lack of access to education.
  2. This lack of access results in **educational backwardness**.
  3. The lack of education ultimately leads to **economic backwardness**.
- **Conclusion:** It is deemed incorrect to classify a person as "socially backward but educationally forward" or "economically forward." The categories are inherently linked, with social status being the root cause. The primary focus for identifying backwardness must, therefore, be on social factors.

1.3 The Purpose of Reservation: Sharing State Power

- **Not for Economic Upliftment:** The professor emphasizes that reservation was not designed to make people wealthy. A government job cannot make one rich.
- **The True Objective:** The primary goal of reservation is to dismantle the historical dominance of certain castes and enable backward classes to **share state power**.
  - **Pre-Independence Reality:** It is a well-known fact that until Independence, the **administrative apparatus was manned almost exclusively by members of the upper castes**.
  - **Exclusion of Communities:** The Shudras, Scheduled Castes (SCs), Scheduled Tribes (STs), and other backward social groups among Muslims and Christians had practically no entry into administrative roles.
- **Goal of Empowerment:** The object of Article 16(4) is to be understood as the **empowerment of the backward classes**. The idea is to enable them to participate in governance and feel a sense of dignity and pride, moving from a feeling of being "ruled" to being part of the "ruling class."

Part 2: Identifying "Backward Class of Citizens" – Key Legal Arguments

The lecture analyzes several prominent legal arguments presented in the case regarding how to define and identify a "backward class."

2.1 The Argument Against Caste (Nani Palkhivala)

- **Core Position:** Palkhivala argues that India is meant to be a "secular, unified, casteless society," which he deems a basic feature of the Constitution.
- **His View:** Since caste is a prohibited ground of distinction, it should be **erased altogether** from Indian society and can **never be the basis** for determining backward classes under Article 16(4).
- **Concern:** He warned that accepting the Mandal Commission's findings (which identified 52% of the population as backward) would jeopardize administrative efficiency and make "merit" disappear.

2.2 The Argument of Historical Compensation (Ram Jethmalani)

- **Core Position:** Jethmalani presents a highly restrictive, historically-rooted definition. He argues that "backward class" in Article 16(4) means **only the Shudra class** (the fourth varna, excluding the three upper castes: Brahmin, Kshatriya, and Vaishya).
- **Outcastes:** According to him, those outside the four-fold varna system are not "backward classes" but "outcastes" (i.e., SCs and STs).
- **His View:** Article 16(4) was exclusively designed for the "middle castes" categorized as Shudras.
- **Crucial Principle:** Reservation is a **"program of historical compensation."** It is **not** a poverty alleviation program or a measure for economic reform. Poverty is irrelevant as a criterion in his view.

2.3 The Argument of "Class" over "Citizen" (K. Parasaran)

- **Core Position:** Parasaran emphasizes a crucial linguistic distinction.
- **His View:** Article 16(4) provides reservation for a **"backward class of citizens"** and not for "backward citizens."
  - The state must identify a **homogeneous group** that is backward, not a collection of individuals.
  - A homogeneous group can be based on religion, race, caste, place of birth, etc. If that entire group is deemed backward, reservation can be granted.
- **Key Principle:** This is presented as a very sound, "secular definition" of the provision.

2.4 The Argument for Economic Criteria (K.K. Venugopal)

- **Core Position:** Venugopal argues for the primacy of economic factors.
- **His View:** He relies on Articles 38(2) and 46 of the Constitution, arguing that the state's objective is to minimize inequalities in income, both among individuals and among groups. Therefore, the **economic criterion is important** and must be applied when determining backwardness.

Part 3: The Supreme Court's Holding – Key Principles Established

This section details the actual rulings and principles established by the Court in response to the questions raised.

3.1 Methodology for Identifying Backward Classes

- **Caste as a Starting Point (Not the Sole Factor):** The Court holds that caste is **relevant** and can serve as a starting point for identifying backwardness. You cannot deny that a caste is backward if the facts support it.
  - **Crucial Quote:** "If reservation is made in favour of backward class of citizens, the bar contained in clause 2 is not attracted, even if backward classes are identified with reference to caste."
- **Rejection of "Caste Simpliciter":** You cannot grant reservation based on caste alone. For example, a law reserving seats for all Muslims (based purely on religion) is unconstitutional. However, a law for "Muslims + Poverty" (a specific class) is permissible.
- **The "Four Principal Factors":** When identifying backwardness, the following four factors were historically considered crucial:
  1. **Poverty**
  2. **Caste**
  3. **Occupation**
  4. **Habitation (Place of Residence)**
- **Emphasis on Social Backwardness:** The Court reiterates that the primary accent of Article 16(4) is on **social backwardness**. It would be incorrect to require a class to be both socially and educationally backward for employment. Educational backwardness is a requirement for Article 15(4) (education), but for Article 16(4) (employment), social backwardness is the main criterion.

3.2 Key Rulings on Reservation Mechanics (Recap by Professor)

The professor provides a rapid-fire summary of the 12-13 key legal issues and the Court's decisions on them:

Legal Issue / Question	Supreme Court's Ruling
1. Need for a Law	Reservation can be provided via **Executive Order**. A specific law passed by Parliament is not required because Article 16(4) uses the word "provision" and not "law" (as in Article 19). The constitutional mandate already exists.
2. Exception to Equality?	Article 16(4) is **not an exception** to Article 16(1)'s guarantee of equality. It is a **facet or elaboration** of the principle of reasonable classification.
3. Exhaustiveness of 16(4)	Article 16(4) is **not exhaustive** of the concept of reservation. Reservations can be made under Article 16(1) in "very exceptional situations" and in "public interest."
4. Role of Caste	Caste **can be a starting point** for identifying backward classes. Identifying a backward class *by* caste is not prohibited, but caste cannot be the *sole* criterion.
5. Economic Criteria	Reservation under Article 16(4) **cannot** be based purely on economic criteria. The subsequent 10% EWS (Economically Weaker Sections) reservation was ruled invalid on these grounds.
6. Categorization	States **can** create sub-categories within the backward classes (i.e., "Backward" and "More Backward").
7. Reservation Limit	The normal limit for reservation should be **50%**. Exceptions can be made in extraordinary circumstances.
8. Carry Forward Rule	Seats can be carried forward to the next year, but this is **subject to the 50% ceiling** on total reservations. This ruling was later addressed through a constitutional amendment.
9. Reservation in Promotion	The Court initially **rejected** reservation in promotions. However, it used the doctrine of **Prospective Overruling** (first established in *Golaknath*), allowing it to continue for 5 years.
10. Judicial Review	Decisions on backwardness are primarily for the executive, but they are **subject to judicial review**. The Court can interfere if the exercise is flawed.
11. Future Oversight	The Court recommended establishing a **permanent commission** to periodically review and determine which classes are backward and which are not.

Part 4: Key Cases and Doctrines Mentioned

The professor references several landmark cases and legal doctrines to illustrate the evolution of the jurisprudence on reservation.

- ***State of Madras v. Champakam Dorairajan*:** Led to the first constitutional amendment, allowing for reservation in educational institutions.
- ***M.R. Balaji v. State of Mysore*:** An earlier case that was skeptical of using caste as the sole determinant for backwardness.
- ***T. Devadasan v. Union of India*:** Case dealing with the "carry forward" rule and the 50% ceiling.
- ***State of Kerala v. N.M. Thomas*:** A crucial case that recognized reservation as a facet of equality, not an exception.
- ***Indra Sawhney v. Union of India*:** The central case for this lecture. It established the 50% cap, ruled against reservation in promotions (with prospective overruling), and upheld the Mandal Commission's recommendations, albeit with modifications.
- ***Golaknath v. State of Punjab*:** The case where the doctrine of **Prospective Overruling** was first introduced in India.
- ***Jarnail Singh v. Lachhmi Narain Gupta*:** (Implied context) This later case dealt with the issue of reservation in promotions and the application of the "creamy layer" principle to SCs/STs.
- ***Janhit Abhiyan v. Union of India* (EWS Reservation Case):** The 10% reservation for Economically Weaker Sections (EWS), which was introduced via a constitutional amendment, was a contentious point. The professor criticizes the Supreme Court's logic in upholding it, suggesting an inconsistency with the principles laid down in *Indra Sawhney*.
- ***Regents of the University of California v. Bakke*:** A US case mentioned to draw a parallel. The professor notes that in the US, racial quotas were eventually cancelled, though "institutional preferences" were allowed, to illustrate the global debate on reservation and discrimination.

Part 5: Important Quotes and Sentences (As Emphasized by the Professor)

The instructor explicitly instructs students to remember these statements:

> "If reservation is made in favour of backward class of citizens, the bar contained in clause 2 is not attracted, even if backward classes are identified with reference to caste."

> "Poverty, caste, occupation, and habitation are the principal factors which contributed to rank a class as socially backward."

> "It was this imbalance [pre-Independence upper-caste dominance] which was sought to be redressed by providing for reservation in favour of such backward classes."

> "It is neither a measure for economic reform nor a poverty alleviation program." (In the context of Jethmalani's argument on historical compensation).

> "The very use of the word 'provision' [in Article 16(4)] ... is the reason [why an executive order is sufficient]."

Part 6: Assigned Readings (Homework)

The professor explicitly instructs students to read the following cases to gain a comprehensive understanding of the topic:

1. ***M.R. Balaji v. State of Mysore***
2. ***Akhil Bharatiya Shoshit Karamchari Sangh (Railway) v. Union of India***
3. ***General Manager, Southern Railway v. Rangachari***
4. ***T. Devadasan v. Union of India***
5. ***State of Kerala v. N.M. Thomas***
6. ***Indra Sawhney v. Union of India*** (Focus on the operational and reasoning lines)
7. ***M. Nagaraj v. Union of India*** (Implied context for Articles 16(4A) and 16(4B))
8. ***Vasant Kumar*** (Case mentioned in passing for reading)

The professor advises students to read the arguments of all the advocates (Palkhivala, Jethmalani, Parasaran, Venugopal) and the reasoning of the judges to develop expertise in constitutional law.

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Here are extremely detailed academic notes based on the provided lecture transcript, expanding on every concept, legal argument, and judicial principle discussed by Professor V.P. Tiwari. The notes are structured for deep comprehension and exam preparation.

Comprehensive Lecture Notes: Constitutional Law – Backward Classes, Reservation, and the Indra Sawhney Framework

Instructor: Professor V.P. Tiwari
Subject: Constitutional Law
Core Topic: Article 15(4) & Article 16(4) – The Concept of "Backward Class of Citizens," Judicial Interpretation, and the Mechanics of Reservation in India.

Part 1: Historical Genesis and Constitutional Philosophy of Reservation

1.1 The Foundational Problem: Exclusion from Governance

- **Pre-Constitution Reality:** Professor Tiwari opens by establishing the historical context. For centuries, the administrative and governance structures of India were controlled almost exclusively by a narrow segment of society – the upper castes.

- **The Quote to Remember:** "It is a well known fact that till Independence, the administrative apparatus was manned almost exclusively by members of the upper caste."
- **The Consequence of Exclusion:** This systemic exclusion meant that vast swathes of the population – the Shudras, the Scheduled Castes (SCs), Scheduled Tribes (STs), and other socially backward groups among Muslims and Christians – had practically **no entry** into the administrative apparatus. They were perpetually in a state of being "ruled" and never part of the "ruling class."

1.2 The Constitutional Mandate: Article 16(4)

- **Why Article 16 Initially?** When the Constitution was being drafted, the reservation provision was originally placed only in **Article 16** (Equality of opportunity in matters of public employment).
  - **The Core Rationale:** The primary objective was not economic upliftment. It was **political and psychological empowerment**. The framers wanted to ensure that those who had been historically deprived of participating in governance were brought into the fold. The goal was to make them "feel that they are part of the governance."
- **The Evolution: Educational Reservation via Article 15(4):**
  - The original Constitution did not provide for reservation in educational institutions.
  - This changed after the landmark case of ***State of Madras v. Champakam Dorairajan*** **(1951)**. The Supreme Court struck down a communal G.O. that provided caste-based reservations in educational institutions.
  - To overturn this decision, the Parliament passed the **First Constitutional Amendment Act, 1951**, which introduced **Article 15(4)**. This clause empowered the state to make special provisions for the advancement of "any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes."

1.3 Textual Distinction and Its Significance

Article	Provision For	Exact Terminology Used
Article 15(4)	Reservation in **Educational Institutions**	"Socially and Educationally Backward Classes of Citizens"
Article 16(4)	Reservation in **Public Employment**	"Backward Class of Citizens"

- **Professor's Emphasis:** This textual difference is not accidental. It is legally significant.
  - For **education (15(4))** , the class must be both **socially and educationally backward**. It would be pointless to reserve seats in a university for a class that is already educationally forward.
  - For **employment (16(4))** , the primary criterion is **social backwardness**. The Supreme Court in *Indra Sawhney* held that it would be incorrect to say that a class must be both socially and educationally backward to get reservation in jobs. The main focus is on social backwardness and inadequate representation in the services.

Part 2: The Core Thesis – The Interconnectedness of Social, Educational, and Economic Backwardness

2.1 The Court's Causal Chain Argument

The Supreme Court in *Indra Sawhney* establishes a foundational philosophical position: **All backwardness in India is a consequence of social backwardness.**

- **The Logic:**
  1. **Social Backwardness (Root Cause):** A person born into a socially backward community faces discrimination, stigma, and exclusion from the outset. This is the primary disadvantage.
  2. **Leads to Educational Backwardness:** Due to social exclusion, poverty, and lack of access, the person is unable to acquire a quality education.
  3. **Leads to Economic Backwardness:** Because the person is not educated, they cannot secure proper employment or start a successful business. This results in economic poverty, which in turn reinforces their social backwardness.
- **The Vicious Circle:** The Court uses the metaphor of a "vicious circle" to describe this phenomenon. Social backwardness breeds educational backwardness, which breeds economic backwardness, which further perpetuates social backwardness. "They feed upon each other, constituting a vicious circle."
- **Quotes to Remember:**
  - "Social hierarchy and economic position exhibit an indisputable mutual relationship."
  - "The lower the caste, the poorer its members. The poorer the members of the caste, the lower the caste."
- **Key Takeaway:** It is, therefore, logically flawed to find a person who is "socially backward but educationally forward" and use that to deny them the benefits of reservation. The categories are deeply intertwined, and the root cause is the social status determined by caste.

2.2 Why Pure Economic Criteria is Rejected

- **The Flaw of "Mere Poverty":** The Court explicitly rejects using "mere poverty" as the sole criterion for providing reservation under Article 16(4).
- **The Reason:**
  - The vast majority of India's population is poverty-stricken.
  - Among the poor, there are many who are **socially and educationally forward**. The professor gives the example of himself – a person from a "forward community" who may not be wealthy but is certainly not educationally backward (holding a PhD and being a professor).
  - Providing reservation based solely on income would mean giving benefits to poor individuals from forward castes, which is not the objective of Article 16(4). The objective is to correct a specific historical injustice rooted in the caste system.
- **The Idea of an "Upper Income Ceiling" (Creamy Layer):**

- The Court recognizes that within a backward class, some members may have "progressed far enough and far ahead so as to compare favourably with the leading forward class economically, socially, and educationally."
- In such cases, the benefit of reservation should not go to them. An **"upper income ceiling"** should be established so that the benefit of reservation is secured only for "such of those members who are still behind, who really deserve." This is the foundational idea behind the **"creamy layer"** concept.

2.3 The True Purpose: Sharing State Power, Not Poverty Alleviation

- **A Program of Historical Compensation:** Professor Tiwari aligns with the argument of Ram Jethmalani, stating emphatically that reservation is a **"program of historical compensation."**
- **What It Is Not:**
  - It is **not** a measure for economic reform.
  - It is **not** a poverty alleviation program.
- **The Real Goal: Empowerment and Dignity:**
  - The goal is to dismantle the historical dominance of upper castes in the state apparatus.
  - It is to enable the backward classes to **share state power**.
  - The psychological impact is crucial. It is about enabling a community to move from a feeling of being "ruled" to feeling like they are part of the "ruling class." This brings a sense of **prestige (pratishtha), respect (samman), and pride (garv)** .
- **Quote to Remember:** "The idea was to enable them to share the state power."

Part 3: The Critical Legal Question – What is a "Backward Class of Citizens"?

This is the central question that has "tormented the nation." The Constitution does not define the expression. The lecture dissects the arguments of four key legal luminaries whose opinions were considered by the Supreme Court.

3.1 Nani Palkhivala's Argument: The "Casteless Society" Vision

- **Core Position:** Palkhivala argues for a strict secular reading of the Constitution.
- **Key Arguments:**
  1. **Basic Feature:** He posits that a "secular, unified, casteless society is the basic feature of the Constitution."
  2. **Prohibited Ground:** Since caste is a prohibited ground of distinction, it must be "erased altogether from Indian society."
  3. **Caste Cannot be a Basis:** Therefore, caste can **never** be the basis for determining backward classes under Article 16(4). Doing so would perpetrate the very evil the Constitution aims to abolish.
- **His Critique of the Mandal Commission Report:**
  - The Mandal Commission had divided the nation into two sections: backward and forward, declaring 52% of the population as backward.
  - Palkhivala argued that accepting this would have catastrophic consequences. It would "seriously jeopardize the efficiency of the administration" and cause "merit" to disappear.

3.2 Ram Jethmalani's Argument: The "Historical Compensation" Theory

- **Core Position:** Jethmalani provides a highly restrictive, textually and historically rooted definition.
- **Key Arguments:**
  1. **Who is "Backward"?** He argues that "backward class" in Article 16(4) means and means only the **Shudra class**. The Shudras are the fourth varna in the Hindu caste hierarchy, located below the three "upper" castes (Brahmin, Kshatriya, Vaishya).
  2. **Outcastes:** According to him, those outside the four-fold varna system (the "untouchables") are not "backward classes." They are **outcastes** – which are the Scheduled Castes (SCs) and Scheduled Tribes (STs), for whom separate constitutional provisions exist.
  3. **Conclusion:** Article 16(4) was therefore provided **only** for the "middle castes" categorized as Shudras and for **no one else**.
- **Key Principles from his Argument:**
  - **Irrelevance of Poverty:** "Poverty is not a necessary criterion for backwardness, it is in fact irrelevant."
  - **The Core Definition:** "The provision for reservation is really a program of historical compensation. It is neither a measure for economic reform nor a poverty alleviation program." (Professor Tiwari makes the class repeat this sentence aloud).

3.3 K. Parasaran's Argument: The Significance of "Class"

- **Core Position:** Parasaran emphasizes a crucial linguistic and conceptual distinction in the text of Article 16(4).
- **Key Arguments:**
  1. **"Class" vs. "Citizens":** The Constitution says reservation is for a **"backward class of citizens."** It does **not** say reservation is for "backward citizens."
  2. **Implication:** The state's duty is to identify a **homogeneous group** (a "class") that is backward, not to identify a collection of backward individuals.
  3. **Formation of a Class:** A homogeneous group can be based on religion, race, caste, place of birth, or any other relevant factor. If that entire group is determined to be a "backward class," then reservation can be granted in their favor.
- **Professor's Assessment:** This is described as a "very good secular definition" because it focuses on identifying a group with shared characteristics of backwardness, rather than simply naming a religion or caste.

3.4 K.K. Venugopal's Argument: The Primacy of Economic Criteria

- **Core Position:** Venugopal argues for a primary role of economic factors in determining backwardness.
- **Key Arguments:**

1. **Constitutional Objective:** He relies on the Directive Principles of State Policy, specifically **Article 38(2)** and **Article 46**. These articles direct the state to minimize inequalities in income and promote the interests of weaker sections.
2. **His Conclusion:** Since the goal is to reduce economic inequality, the **economic criterion is an important one** and "must be applied in determining backward class."

- **This Argument was Rejected by the Court:** The Supreme Court did not agree with making economic criteria the sole or primary basis for reservation under Article 16(4), leading to the eventual controversy around the 10% EWS reservation.

Part 4: The Supreme Court's Final Holdings – Principles of Reservation

This section outlines the final decisions made by the Supreme Court in response to the multiple legal questions raised.

4.1 On the Methodology for Identifying Backward Classes

- **Caste is Relevant, but Not Exclusive:**
  - The Court rejects the extreme position of Palkhivala (caste is irrelevant) and the simplicity of Jethmalani (only Shudras are backward).
  - It acknowledges that "caste is a very very important component of our country" and cannot be ignored.
  - **The Crucial Quote:** "If reservation is made in favour of backward class of citizens, the bar contained in clause 2 is not attracted, even if backward classes are identified with reference to caste."
  - **Meaning:** The fact that you *identify* a backward class *using* caste is not unconstitutional. However, the reason for the reservation is not the caste itself, but the fact that this caste constitutes a backward class.
- **The "Sole Factor" Prohibition:** Caste cannot be the **sole** factor.
  - You cannot simply say "all members of Caste X are backward." You must have other supporting factors.
  - **The "Muslim + Poverty" Example:** A law reserving seats for all Muslims is unconstitutional (based on religion). But a law for "Muslims who are also poor" is permissible because it identifies a specific, homogeneous class based on a combination of factors.
- **The Four Principal Factors for Determining Backwardness:**
  - Professor Tiwari directs students to remember these four factors as the key indicators of social backwardness:
    1. **Poverty:** The economic condition of the group.
    2. **Caste:** The social status of the group in the caste hierarchy.
    3. **Occupation:** The traditional type of work the group is engaged in.
    4. **Habitation:** The place where the group resides (e.g., slums, remote areas).
  - **Quote to Remember:** "Poverty, caste, occupation, and habitation are the principal factors which contributed to rank a class as socially backward."
- **Social Backwardness is the Main Criterion:**
  - The Court holds that the backwardness contemplated by Article 16(4) is **mainly social backwardness**.
  - It is **not correct** to say that a class must be both socially and educationally backward to get reservation in jobs. This is a requirement for Article 15(4), not 16(4).
  - The focus is on whether the class is socially backward and, as a result, "not adequately represented in the services."

4.2 On the Mechanics of Reservation (Rapid-Fire Summary)

Professor Tiwari provides a consolidated summary of the 12-13 critical legal issues and the Court's rulings.

#	Legal Issue / Question	Supreme Court's Ruling in *Indra Sawhney*
1	**Is a law required for reservation?**	**No.** Reservation can be provided via an **Executive Order**. The reason is that Article 16(4) uses the word "provision," not "law." The constitutional mandate already exists; an executive order can implement it.
2	**Is Art. 16(4) an exception to Art. 16(1)?**	**No.** It is **not an exception**. It is a **facet, an elaboration, or an extension** of the principle of equality. It is a form of reasonable classification.
3	**Is Art. 16(4) exhaustive of reservation?**	**No.** It is **not exhaustive**. Reservations can be made under **Article 16(1)** itself, but only in "very exceptional situations" and for "public interest," not for vote bank politics.
4	**Can caste be a starting point?**	**Yes.** Caste can be a starting point for identifying backward classes. It is a relevant factor.
5	**Can reservation be on economic criteria alone?**	**No.** Reservation under Article 16(4) cannot be based purely on economic criteria. The 10% EWS reservation was later introduced via a constitutional amendment and was a point of significant legal debate.
6	**Can we have "Backward" and "More Backward"?**	**Yes.** The state can create sub-categories within the backward classes to ensure that the benefits reach the most marginalized groups.
7	**What is the reservation limit?**	The normal limit for reservation should be **50%**. Exceptions can be made in extraordinary circumstances.
8	**Is the "Carry Forward" rule valid?**	**Yes**, seats can be carried forward, but the total reservation **must not exceed 50%**. If it does, it becomes unconstitutional. This was later addressed by a constitutional amendment (Art. 16(4B)).
9	**Is reservation in promotion valid?**	**No.** The Court held that reservation cannot be provided in promotions. However, it used the doctrine of **Prospective Overruling** to allow it to continue for 5 years. This was later nullified by a constitutional amendment (Art. 16(4A)).
10	**Can the Courts review the decision?**	**Yes.** The decision of who is backward is primarily a question of fact for the executive, but it is **subject to judicial review**.
11	**Is there a need for oversight?**	**Yes.** The Court recommended the establishment of a **permanent commission** to periodically review the list of backward classes.

4.3 The Controversy of the 10% EWS Reservation

- **The Inconsistency:** Professor Tiwari highlights what he perceives as a major logical flaw in the Supreme Court's reasoning in later cases like *Janhit Abhiyan v. Union of India* (the EWS case).
- **His Argument:**
  1. The Court in *Indra Sawhney* said that reservation cannot be based on economic criteria alone and that the 50% limit is a general rule.
  2. The Court also said that Article 16(4) is not exhaustive and that reservation can be made under Article 16(1) in "exceptional situations."
  3. However, when a 10% EWS reservation was introduced, the Court upheld it.
- **His Critique:** He criticizes this logic. If reservation can be given under Article 16(1) for any "exceptional situation," then why was the EWS reservation not simply accommodated under Article 16(1)? He questions the intellectual consistency of the judges, stating, "Kitne peg pee ke aate hain Supreme Court ke judges?" (How many pegs do Supreme Court judges drink before coming to court?).

Part 5: Key Cases and Doctrines – A Review

The professor references a chain of landmark cases that are essential reading for understanding the evolution of reservation law.

1. ***Champakam Dorairajan* (1951):** Established that caste-based reservations in education were unconstitutional as they violated Article 15(1). This led to the First Amendment and the introduction of Article 15(4).
2. ***M.R. Balaji v. State of Mysore* (1963):** This case first dealt with the meaning of "backward classes" and held that caste could not be the sole determinant. It also introduced the idea that reservation should be less than 50%.
3. ***T. Devadasan v. Union of India* (1964):** The "carry forward" rule was challenged here. The Supreme Court ruled that carrying forward vacancies could not result in more than 50% of the total seats in a year being reserved.
4. ***State of Kerala v. N.M. Thomas* (1976):** A crucial shift in jurisprudence. It held that Article 16(4) is not an exception to Article 16(1) but is a facet of equality itself. It is a positive affirmation of the principle of equality.
5. ***Indra Sawhney v. Union of India* (1992):** The 9-judge bench decision that is the core of this lecture. It upheld the Mandal Commission's recommendations (for OBC reservation), introduced the "creamy layer" concept, capped reservation at 50%, and ruled against reservation in promotions.
6. ***Golaknath v. State of Punjab* (1967):** Mentioned for introducing the doctrine of **Prospective Overruling** in India. This doctrine allows a court to overrule a past decision while limiting its effect to future cases, thereby not disturbing past transactions.
7. ***Regents of the University of California v. Bakke* (US Case):** Used as a comparative example. It shows how the US Supreme Court dealt with affirmative action, ultimately ruling that strict racial quotas were invalid, though race could be considered as one factor among many.

Part 6: Important Quotes to Memorize (As Dictated by the Professor)

The instructor explicitly tells the students to repeat and remember these sentences:

> **On the Pre-Independence Reality:**
> "It is a well known fact that till Independence, the administrative apparatus was manned almost exclusively by members of the upper caste."

> **On the Purpose of Reservation:**
> "It was this imbalance which was sought to be redressed by providing for reservation in favour of such backward classes."

> **On the Nature of Reservation:**
> "It is neither a measure for economic reform nor a poverty alleviation program."

> **On the Role of Caste:**
> "If reservation is made in favour of backward class of citizens, the bar contained in clause 2 is not attracted, even if backward classes are identified with reference to caste."

> **On the Key Factors:**
> "Poverty, caste, occupation, and habitation are the principal factors which contributed to rank a class as socially backward."

> **On the Root Cause:**
> "Social backwardness leads to educational backwardness and both of them together with poverty, which in turn breeds and perpetuates the social and educational backwardness. They feed upon each other, constituting a vicious circle."

Part 7: Assigned Readings (Mandatory Homework)

The professor emphasizes that to be an "expert in law," one must read the original judgments. He directs students to read the following cases:

1. ***M.R. Balaji v. State of Mysore*:** To understand the early judicial skepticism of caste as a sole factor.
2. ***Akhil Bharatiya Shoshit Karamchari Sangh (Railway) v. Union of India*:** A key case on the subject.
3. ***General Manager, Southern Railway v. Rangachari*:** An important case dealing with reservation in promotions.
4. ***T. Devadasan v. Union of India*:** To understand the "carry forward" rule and the 50% limit.
5. ***State of Kerala v. N.M. Thomas*:** To understand the "facet of equality" doctrine.
6. ***Indra Sawhney v. Union of India*:** The primary case for this topic. Read the full arguments of all the advocates (Palkhivala, Jethmalani, Parasaran, Venugopal) and the reasoning of the judges.

7. ***Vasant Kumar*:** Another case mentioned as essential reading for a complete understanding.